

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
EMIL FELDMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and P.O. FORTUNATO,

Defendants,

-----X
To the above-named Defendants:

Index No.:

Date purchased:

Plaintiff designates

KINGS County

as the place of Trial.

SUMMONS WITH NOTICE

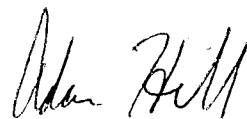
The basis of the venue is

Place of Occurrence:

Brooklyn, NY 11218

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
January 3, 2017



Adam Hill, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; assault; battery; excessive force; unlawful detention; violation of civil rights

The relief sought is monetary damages: compensatory damages and exemplary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from June 16, 2017 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
EMIL FELDMAN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK POLICE
DEPARTMENT, and P.O. FORTUNATO,

Defendants,

-----X

1. At all times hereinafter mentioned, plaintiff **EMIL FELDMAN** was and still is a resident of the County of KINGS, City and State of New York.

2. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant **NEW YORK POLICE DEPARTMENT** is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. At all times hereinafter mentioned defendant, Police Officer **FORTUNATO** of the 66TH precinct, was a police officer employed by the New York City Police Department and at all times herein mentioned was acting in the scope of his employment as a police officer.

5. At all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

6. On July 18, 2017 plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this law suit.

7. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

9. That on June 16, 2017 at approximately 3:00 pm within the premises 260 Ocean Parkway, Apt 5M, Brooklyn, New York, P.O. FORTUNATO, without reasonable or probable cause, assaulted and battered plaintiff.

10. That plaintiff sustained severe personal injuries as a result of P.O. FORTUNATO striking plaintiff.

11. That plaintiff was not arrested.

12. That plaintiff was not charged with a crime or violation.

13. That plaintiff was never arraigned.

14. That plaintiff was not issued a summons or ticket.

15. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

16. The incident resulted from the intentional, wanton, wrongful conduct of the defendants.

17. As a result of the foregoing, plaintiff sustained compensatory damages and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiffs demand judgment against the defendants on all causes of

action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
January 3, 2017

Yours, etc.,

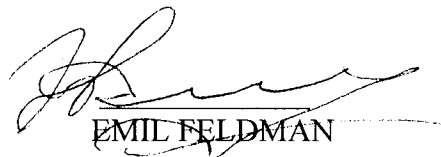
A handwritten signature in black ink, appearing to read "Adam Hill", is written over the typed name.

Adam Hill, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35TH Floor
KINGS, New York 11241
(718) 855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

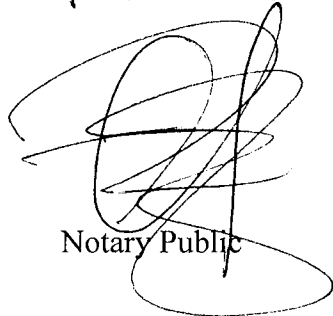
EMIL FELDMAN, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing **COMPLAINT** and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.



EMIL FELDMAN

Sworn to before me this
1st day of January, 2018



Notary Public

ANA L. RUIZ
Notary Public, State of New York
No. 01RU6349171
Qualified in Queens County
Commission Expires October 17, 2020

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

EMIL FELDMAN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT, AND
P.O. FORTUNATO,

Defendants,

SUMMONS & COMPLAINT

LAW OFFICES OF ROSS AND HILL, PLLC.

Attorneys for Plaintiff

Office and Post Office Address

16 Court Street, 35th Floor

KINGS, New York 11241

Tel (718) 855-2324

Fax (718) 855-4617

To:

Service of a copy of the within
is hereby admitted.

Dated:

Attorney(s) for
